

CODE OF CRIMINAL PROCEDURE
TITLE 1. CODE OF CRIMINAL PROCEDURE
CHAPTER 56A. RIGHTS OF CRIME VICTIMS

SUBCHAPTER A. GENERAL PROVISIONS

Art. 56A.001. DEFINITIONS. Except as otherwise provided by this chapter, in this chapter:

- (1) "Board" means the Board of Pardons and Paroles.
- (2) "Clearinghouse" means the Texas Crime Victim Clearinghouse.
- (3) "Close relative of a deceased victim" means a person who:
 - (A) was the spouse of a deceased victim at the time of the victim's death; or
 - (B) is a parent or adult brother, sister, or child of a deceased victim.
- (4) "Department" means the Texas Department of Criminal Justice.
- (4-a) "Family violence" means an offense under the following provisions of the Penal Code if the offense is committed against a person whose relationship to or association with the defendant is described by Section [71.0021\(b\)](#), [71.003](#), or [71.005](#), Family Code:
 - (A) Section 21.02;
 - (B) Section 21.11(a)(1);
 - (C) Section 22.01;
 - (D) Section 22.011;
 - (E) Section 22.02;
 - (F) Section 22.021;
 - (G) Section 22.04; and
 - (H) Section 25.11.
- (5) "Guardian of a victim" means a person who is the legal guardian of the victim, regardless of whether the legal relationship between the guardian and victim exists because of the age of the victim or the physical or mental incompetency of the victim.

(6) "Sexual assault" means an offense under the following provisions of the Penal Code:

- (A) Section [21.02](#);
- (B) Section [21.11\(a\)\(1\)](#);
- (C) Section [22.011](#); or
- (D) Section [22.021](#).

(6-a) "Sexual assault examiner" and "sexual assault nurse examiner" have the meanings assigned by Section [420.003](#), Government Code.

(7) "Victim" means a person who:

- (A) is the victim of the offense of:
 - (i) sexual assault;
 - (ii) kidnapping;
 - (iii) aggravated robbery;
 - (iv) trafficking of persons;
 - (v) injury to a child, elderly individual, or disabled individual;
 - (vi) family violence; or
 - (vii) stalking;
- (B) has suffered personal injury or death as a result of the criminal conduct of another; or
- (C) is the victim of an offense committed under Section [25.07](#), [25.071](#), or [25.072](#), Penal Code, if a violation that is an element of the offense occurred through the commission of an assault, aggravated assault, or sexual assault or the offense of stalking, regardless of whether that violation occurred with respect to a person whose relationship to or association with the defendant is described by Section [71.0021\(b\)](#), [71.003](#), or [71.005](#), Family Code.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Amended by:

Acts 2021, 87th Leg., R.S., Ch. 915 (H.B. [3607](#)), Sec. 4.007(a), eff. September 1, 2021.

Acts 2025, 89th Leg., R.S., Ch. 797 (S.B. [1120](#)), Sec. 1, eff. September 1, 2025.

SUBCHAPTER B. CRIME VICTIMS' RIGHTS

Art. 56A.051. GENERAL RIGHTS. (a) A victim, guardian of a victim, or close relative of a deceased victim is entitled to the following rights within the criminal justice system:

(1) the right to receive from a law enforcement agency adequate protection from harm and threats of harm arising from cooperation with prosecution efforts;

(2) the right to have the magistrate consider the safety of the victim or the victim's family in setting the amount of bail for the defendant;

(3) if requested, the right to be informed in the manner provided by Article [56A.0525](#):

(A) by the attorney representing the state of relevant court proceedings, including appellate proceedings, at least five business days before the date of each proceeding or otherwise as soon as reasonably practicable, and to be informed as soon as possible if those proceedings have been canceled or rescheduled before the event; and

(B) by an appellate court of the court's decisions, after the decisions are entered but before the decisions are made public;

(4) when requested, the right to be informed in the manner provided by Article [56A.0525](#):

(A) by a peace officer concerning the defendant's right to bail and the procedures in criminal investigations; and

(B) by the office of the attorney representing the state concerning:

(i) the general procedures in the criminal justice system, including general procedures in guilty plea negotiations and arrangements, restitution, and the appeals and parole process; and

(ii) whether the defendant has fully complied with any conditions of the defendant's bail;

(5) the right to provide pertinent information to a community supervision and corrections department conducting a presentencing investigation concerning the impact of the offense on

the victim and the victim's family by testimony, written statement, or any other manner before any sentencing of the defendant;

(6) the right to receive information, in the manner provided by Article [56A.0525](#):

(A) regarding compensation to victims of crime as provided by Chapter [56B](#), including information related to the costs that may be compensated under that chapter and the amount of compensation, eligibility for compensation, and procedures for application for compensation under that chapter;

(B) for a victim of a sexual assault, regarding the payment under Subchapter G for a forensic medical examination and for any prescribed continuing medical care that is related to the sexual assault and provided to the victim during the 30-day period following that examination, as provided by Subchapter G; and

(C) when requested, providing a referral to available social service agencies that may offer additional assistance;

(7) the right to:

(A) be informed, on request, and in the manner provided by Article [56A.0525](#), of parole procedures;

(B) participate in the parole process;

(C) provide to the board for inclusion in the defendant's file information to be considered by the board before the parole of any defendant convicted of any offense subject to this chapter; and

(D) be notified in the manner provided by Article [56A.0525](#), if requested, of:

(i) parole proceedings concerning a defendant in the victim's case;

(ii) the defendant's release on parole for the offense involving the victim, including the county in which the defendant is required to reside, and the nonconfidential conditions of the defendant's parole, including any condition:

(a) prohibiting the defendant from going near the victim's home or work; or

(b) requiring the defendant to complete a battering intervention and prevention program

established under Article [42.141](#);

(iii) any offense with which the defendant is charged while released on parole for the offense involving the victim, if the department is aware of the offense;

(iv) the issuance of any warrant under Section [508.251](#), Government Code, for the return of the defendant; and

(v) any revocation of the defendant's parole for the offense involving the victim;

(8) the right to be provided with a waiting area, separate or secure from other witnesses, including the defendant and relatives of the defendant, before testifying in any proceeding concerning the defendant; if a separate waiting area is not available, other safeguards should be taken to minimize the victim's contact with the defendant and the defendant's relatives and witnesses, before and during court proceedings;

(9) the right to the prompt return of any of the victim's property that is held by a law enforcement agency or the attorney representing the state as evidence when the property is no longer required for that purpose;

(10) the right to have the attorney representing the state notify the victim's employer, if requested, that the victim's cooperation and testimony is necessary in a proceeding that may require the victim to be absent from work for good cause;

(11) the right to request victim-offender mediation coordinated by the victim services division of the department;

(12) the right to be informed, in the manner provided by Article [56A.0525](#), of the uses of a victim impact statement and the statement's purpose in the criminal justice system as described by Subchapter D, to complete the victim impact statement, and to have the victim impact statement considered:

(A) by the attorney representing the state and the judge before sentencing or before a plea bargain agreement is accepted; and

(B) by the board before a defendant is released on parole;

Text of subdivision as added by Acts 2025, 89th Leg., R.S., Ch. 365
(H.B. 47), Sec. 2

(13) for a victim of sexual assault or a victim of assault who is younger than 17 years of age or whose case involves family violence, as defined by Section 71.004, Family Code, the right to have the court consider the impact on the victim of a continuance requested by the defendant; if requested by the attorney representing the state or by the defendant's attorney, the court shall state on the record the reason for granting or denying the continuance; and

Text of subdivision as amended by Acts 2025, 89th Leg., R.S., Ch.
797 (S.B. 1120), Sec. 2

(13) for a victim of an assault, aggravated assault, or sexual assault who is younger than 17 years of age or whose case involves family violence, the right to have the court consider the impact on the victim of a continuance requested by the defendant; if requested by the attorney representing the state or by the defendant's attorney, the court shall state on the record the reason for granting or denying the continuance; and

(14) if the offense is a capital felony, the right to:

(A) receive by mail from the court a written explanation of defense-initiated victim outreach if the court has authorized expenditures for a defense-initiated victim outreach specialist;

(B) not be contacted by the victim outreach specialist unless the victim, guardian, or relative has consented to the contact by providing a written notice to the court; and

(C) designate a victim service provider to receive all communications from a victim outreach specialist acting on behalf of any person.

(b) A victim, guardian of a victim, or close relative of a deceased victim is entitled to the right to be present at all public court proceedings related to the offense, subject to the approval of the judge in the case.

(c) The office of the attorney representing the state and the sheriff, police, and other law enforcement agencies shall ensure to the extent practicable that a victim, guardian of a victim, or close relative of a deceased victim is provided the rights granted by this subchapter and, on request, an explanation of those rights.

(d) An advocate for a victim is entitled to obtain on behalf of the victim the information described by Subsection (a)(7)(D).
Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Amended by:

Acts 2023, 88th Leg., R.S., Ch. 107 (S.B. [2101](#)), Sec. 1, eff. September 1, 2023.

Acts 2023, 88th Leg., R.S., Ch. 206 (S.B. [1401](#)), Sec. 2, eff. September 1, 2023.

Acts 2025, 89th Leg., R.S., Ch. 179 (S.B. [761](#)), Sec. 2, eff. September 1, 2025.

Acts 2025, 89th Leg., R.S., Ch. 339 (S.B. [9](#)), Sec. 16, eff. September 1, 2025.

Acts 2025, 89th Leg., R.S., Ch. 365 (H.B. [47](#)), Sec. 1, eff. September 1, 2025.

Acts 2025, 89th Leg., R.S., Ch. 365 (H.B. [47](#)), Sec. 2, eff. September 1, 2025.

Acts 2025, 89th Leg., R.S., Ch. 797 (S.B. [1120](#)), Sec. 2, eff. September 1, 2025.

Art. 56A.052. ADDITIONAL RIGHTS OF VICTIMS OF CERTAIN SEXUAL, TRAFFICKING, OR BURGLARY OFFENSES. (a) A victim, guardian of a victim, or close relative of a deceased victim of an offense under Section [21.02](#), [21.11](#), [22.011](#), [22.012](#), or [22.021](#), Penal Code, is entitled to the following rights within the criminal justice system:

(1) if requested, the right to a disclosure of information, in the manner provided by Article [56A.0525](#), regarding:

(A) any evidence that was collected during the investigation of the offense, unless disclosing the information would interfere with the investigation or prosecution of the

offense, in which event the victim, guardian, or relative shall be informed of the estimated date on which that information is expected to be disclosed; and

(B) the status of any analysis being performed on any evidence described by Paragraph (A);

(2) if requested, the right to be notified in the manner provided by Article [56A.0525](#):

(A) at the time a request is submitted to a crime laboratory to process and analyze any evidence that was collected during the investigation of the offense;

(B) at the time of the submission of a request to compare any biological evidence collected during the investigation of the offense with DNA profiles maintained in a state or federal DNA database; and

(C) of the results of the comparison described by Paragraph (B), unless disclosing the results would interfere with the investigation or prosecution of the offense, in which event the victim, guardian, or relative shall be informed of the estimated date on which those results are expected to be disclosed;

(3) if requested, the right to counseling regarding acquired immune deficiency syndrome (AIDS) and human immunodeficiency virus (HIV) infection;

(4) if requested, the right to be informed about, and confer with the attorney representing the state regarding, the disposition of the offense, including sharing the victim's, guardian's, or relative's views regarding:

(A) a decision not to file charges;

(B) the dismissal of charges;

(C) the use of a pretrial intervention program;

or

(D) a plea bargain agreement; and

(5) for the victim, the right to:

(A) testing for acquired immune deficiency syndrome (AIDS), human immunodeficiency virus (HIV) infection, antibodies to HIV, or infection with any other probable causative agent of AIDS;

(B) a forensic medical examination as provided by

Subchapter G; and

(C) any prescribed continuing medical care that is related to the sexual assault and provided to the victim during the 30-day period following a forensic medical examination, as provided by Subchapter G.

Text of subsection as amended by Acts 2023, 88th Leg., R.S., Ch. 107
(S.B. [2101](#)), Sec. 2

(b) A victim, guardian of a victim, or close relative of a deceased victim who requests to be notified under Subsection (a)(2) must provide a current address and phone number to the attorney representing the state and the law enforcement agency that is investigating the offense. The victim, guardian, or relative must inform the attorney representing the state and the law enforcement agency of any change in the address or phone number. The victim, guardian, or relative must provide an e-mail address and update any change in that e-mail address if the victim, guardian, or relative chooses to receive notifications by e-mail.

Text of subsection as amended by Acts 2023, 88th Leg., R.S., Ch.
1059 (S.B. [409](#)), Sec. 1

(b) Subject to Subsection (c), a victim, guardian of a victim, or close relative of a deceased victim who requests to be notified or receive information under Subsection (a)(1), (2), or (4) must:

(1) provide a current address and phone number to the attorney representing the state and the law enforcement agency that is investigating the offense; and

(2) inform the attorney representing the state and the law enforcement agency of any change in the address or phone number.

(c) A victim, guardian of a victim, or close relative of a deceased victim may designate a person, including an entity that provides services to victims of an offense described by Subsection (a), to receive any notice requested under Subsection (a)(2). This person may not be the person charged with the offense.

(d) This subsection applies only to a victim of an offense listed in Article 7B.001(a)(1) or (2). A victim described by this subsection or a parent or guardian of the victim, if the victim is younger than 18 years of age or an adult ward, is entitled to the following rights within the criminal justice system:

(1) the right to be informed in the manner provided by Article 56A.0525:

(A) that the victim or, if the victim is younger than 18 years of age or an adult ward, the victim's parent or guardian or another adult acting on the victim's behalf may file an application for a protective order under Article 7B.001;

(B) of the court in which the application for a protective order may be filed;

(C) that, on request of the victim or, if the victim is younger than 18 years of age or an adult ward, on request of the victim's parent or guardian or another adult acting on the victim's behalf, the attorney representing the state may, subject to the Texas Disciplinary Rules of Professional Conduct, file the application for a protective order on behalf of the requestor; and

(D) that, subject to the Texas Disciplinary Rules of Professional Conduct, the attorney representing the state generally is required to file the application for a protective order with respect to the victim if the defendant is convicted of or placed on deferred adjudication community supervision for the offense;

(2) the right to:

(A) request that the attorney representing the state, subject to the Texas Disciplinary Rules of Professional Conduct, file an application for a protective order described by Subdivision (1); and

(B) be notified in the manner provided by Article 56A.0525 when the attorney representing the state files an application for a protective order under Article 7B.001;

(3) if the victim or the victim's parent or guardian, as applicable, is present when the defendant is convicted or placed on deferred adjudication community supervision, the right to:

(A) be given by the court the information

described by Subdivision (1), in the manner provided by Article [56A.0525](#); and

(B) file an application for a protective order under Article [7B.001](#) immediately following the defendant's conviction or placement on deferred adjudication community supervision if the court has jurisdiction over the application; and

(4) if the victim or the victim's parent or guardian, as applicable, is not present when the defendant is convicted or placed on deferred adjudication community supervision, the right to be given by the attorney representing the state the information described by Subdivision (1), in the manner provided by Article [56A.0525](#).

(e) A victim of an offense under Section [20A.02](#), [20A.03](#), or [43.05](#), Penal Code, is entitled to be informed, in the manner provided by Article [56A.0525](#), that the victim may petition for an order of nondisclosure of criminal history record information under Section [411.0728](#), Government Code, if the victim:

(1) has been convicted of or placed on deferred adjudication community supervision for an offense described by Subsection (a)(1) of that section; and

(2) committed that offense solely as a victim of an offense under Section [20A.02](#), [20A.03](#), or [43.05](#), Penal Code.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Amended by:

Acts 2021, 87th Leg., R.S., Ch. 915 (H.B. [3607](#)), Sec. 4.009(a), eff. September 1, 2021.

Acts 2023, 88th Leg., R.S., Ch. 107 (S.B. [2101](#)), Sec. 2, eff. September 1, 2023.

Acts 2023, 88th Leg., R.S., Ch. 206 (S.B. [1401](#)), Sec. 3, eff. September 1, 2023.

Acts 2023, 88th Leg., R.S., Ch. 1059 (S.B. [409](#)), Sec. 1, eff. September 1, 2023.

Acts 2025, 89th Leg., R.S., Ch. 251 (H.B. [2596](#)), Sec. 7, eff. September 1, 2025.

Acts 2025, 89th Leg., R.S., Ch. 365 (H.B. [47](#)), Sec. 3, eff. September 1, 2025.

Acts 2025, 89th Leg., R.S., Ch. 797 (S.B. [1120](#)), Sec. 3, eff. September 1, 2025.

Acts 2025, 89th Leg., R.S., Ch. 797 (S.B. [1120](#)), Sec. 4, eff. September 1, 2025.

Art. 56A.0525. AUTHORIZED FORM OF NOTIFICATIONS. For purposes of this subchapter, a judge, attorney representing the state, peace officer, or law enforcement agency that is required to notify, inform, or disclose information to a victim, guardian of a victim, or close relative of a deceased victim in accordance with a right granted under this subchapter shall provide the notification or information in the following manner:

- (1) electronically, including by text message, videoconference, or e-mail;
- (2) by mail;
- (3) through an anonymous, online portal; or
- (4) by contacting by telephone or otherwise making personal contact with the victim, guardian, or relative, as applicable.

Added by Acts 2023, 88th Leg., R.S., Ch. 107 (S.B. [2101](#)), Sec. 3, eff. September 1, 2023.

Art. 56A.0521. ADDITIONAL RIGHTS OF VICTIMS OF CERTAIN FAMILY VIOLENCE OFFENSES, STALKING, AND VIOLATION OF PROTECTIVE ORDER OR CONDITION OF BOND. (a) This article applies only to an offense:

- (1) involving family violence;
- (2) under Section [42.072](#), Penal Code; or
- (3) under Section [25.07](#), [25.071](#), or [25.072](#), Penal Code, if a violation that is an element of the offense occurred through the commission of an assault, aggravated assault, or sexual assault or the offense of stalking, regardless of whether that violation occurred with respect to a person whose relationship to or association with the defendant is described by Section [71.0021\(b\)](#), [71.003](#), or [71.005](#), Family Code.

(b) A victim, guardian of a victim, or close relative of a deceased victim of an offense described by Subsection (a) is

entitled to the following rights within the criminal justice system:

(1) if requested, the right to a disclosure of information regarding:

(A) any evidence that was collected during the investigation of the offense, unless disclosing the information would interfere with the investigation or prosecution of the offense, in which event the victim, guardian, or relative shall be informed of the estimated date on which that information is expected to be disclosed; and

(B) the status of any analysis being performed on any evidence described by Paragraph (A);

(2) if requested, the right to be notified at the time a request is submitted to a crime laboratory to process and analyze any evidence that was collected during the investigation of the offense;

(3) if requested, the right to be informed about, and confer with the attorney representing the state regarding, the disposition of the offense, including sharing the victim's, guardian's, or relative's views regarding:

(A) a decision not to file charges;

(B) the dismissal of charges;

(C) the use of a pretrial intervention program;

or

(D) a plea bargain agreement;

(4) the right to be notified that the attorney representing the state does not represent the victim, guardian of a victim, or close relative of a deceased victim; and

(5) for an offense under Section [42.072](#), Penal Code, all of the rights provided to victims, parents, and guardians as described by Article [56A.052\(d\)](#), for the offenses to which that subsection applies.

(c) Subject to Subsection (d), a victim, guardian of a victim, or close relative of a deceased victim who requests to be notified or receive information under Subsection (b) must:

(1) provide a current address and phone number to the attorney representing the state and the law enforcement agency that

is investigating the offense;

(2) inform the attorney representing the state and the law enforcement agency of any change in the address or phone number; and

(3) if the victim, guardian, or relative chooses to receive notifications by e-mail, provide an e-mail address and update any change in that e-mail address.

(d) A victim, guardian of a victim, or close relative of a deceased victim may designate a person, including an entity that provides services to victims of an offense described by Subsection (a), to receive any notice requested under Subsection (b)(2). This person may not be the person charged with the offense.

(e) If a victim of an offense described by Subsection (a) is also entitled to additional rights under Article [56A.052](#), or if a conflict exists between this article and Article [56A.052](#), that article controls.

Added by Acts 2025, 89th Leg., R.S., Ch. 797 (S.B. [1120](#)), Sec. 5, eff. September 1, 2025.

Art. 56A.053. FAILURE TO PROVIDE RIGHT OR SERVICE. (a) A judge, attorney representing the state, peace officer, or law enforcement agency is not liable for a failure or inability to provide a right granted by this subchapter.

(b) The failure or inability of any person to provide a right or service granted by this subchapter may not be used by a defendant in a criminal case as a ground for appeal, a ground to set aside the conviction or sentence, or a ground in a habeas corpus petition.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.0531. ASSERTION OF RIGHTS. A victim, guardian of a victim, or close relative of a deceased victim may assert the rights provided by this chapter either orally or in writing, individually or through an attorney.

Added by Acts 2023, 88th Leg., R.S., Ch. 1059 (S.B. [409](#)), Sec. 2, eff. September 1, 2023.

Amended by:

Acts 2025, 89th Leg., R.S., Ch. 179 (S.B. [761](#)), Sec. 3, eff. September 1, 2025.

Art. 56A.054. STANDING. A victim, guardian of a victim, or close relative of a deceased victim does not have standing to:

(1) participate as a party in a criminal proceeding;
or

(2) contest the disposition of any charge.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

SUBCHAPTER C. ADDITIONAL PROTECTIONS FOR VICTIMS AND WITNESSES

Art. 56A.101. VICTIM PRIVACY. (a) As far as reasonably practical, the address of the victim may not be a part of the court file except as necessary to identify the place of the offense.

(b) The phone number of the victim may not be a part of the court file.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.102. VICTIM OR WITNESS DISCOVERY ATTENDANCE. Unless absolutely necessary, a victim or witness who is not confined may not be required to attend a deposition in a correctional facility.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

SUBCHAPTER D. VICTIM IMPACT STATEMENT

Art. 56A.151. VICTIM IMPACT STATEMENT; INFORMATION BOOKLET. (a) The clearinghouse, with the participation of the board and the community justice assistance division of the department, shall develop a form to be used by law enforcement agencies, attorneys representing the state, and other participants in the criminal justice system to record the impact of an offense on

a victim of the offense, guardian of a victim, or close relative of a deceased victim and to provide the agencies, attorneys, and participants with information needed to contact the victim, guardian, or relative if needed at any stage of a prosecution of a person charged with the offense. The clearinghouse, with the participation of the board and the community justice assistance division of the department, shall also develop a victims' information booklet that provides a general explanation of the criminal justice system to victims of an offense, guardians of victims, and relatives of deceased victims.

(b) The victim impact statement must be in a form designed to:

(1) inform a victim, guardian of a victim, or close relative of a deceased victim with a clear statement of rights granted by Subchapter B; and

(2) collect the following information:

(A) the name of the victim of the offense or, if the victim has a legal guardian or is deceased, the name of a guardian or close relative of the victim;

(B) the address and telephone number of the victim, guardian, or relative through which the victim, guardian, or relative may be contacted;

(C) a statement of economic loss suffered by the victim, guardian, or relative as a result of the offense;

(D) a statement of any physical or psychological injury suffered by the victim, guardian, or relative as a result of the offense, as described by the victim, guardian, or relative or by a physician or counselor;

(E) a statement of any psychological services requested as a result of the offense;

(F) a statement of any change in the victim's, guardian's, or relative's personal welfare or familial relationship as a result of the offense;

(G) a statement regarding whether the victim, guardian, or relative wants to be notified of any parole hearing for the defendant;

(H) if the victim is a child, whether there is an

existing court order granting to the defendant possession of or access to the victim; and

(I) any other information related to the impact of the offense on the victim, guardian, or relative, other than facts related to the commission of the offense.

(c) The victim impact statement must include an explanation regarding the procedures by which a victim, guardian of a victim, or close relative of a deceased victim may obtain information concerning the release of the defendant from the department.

(d) Not later than December 1 of each odd-numbered year, the clearinghouse, with the participation of the board and the community justice assistance division of the department, shall update the victim impact statement form and any other information provided by the community justice assistance division to victims, guardians of victims, and relatives of deceased victims, if necessary, to reflect changes in law relating to criminal justice and the rights of victims and guardians and relatives of victims.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.152. RECOMMENDATIONS TO ENSURE SUBMISSION OF STATEMENT. The victim services division of the department, in consultation with the board, law enforcement agencies, offices of attorneys representing the state, and other participants in the criminal justice system, shall develop recommendations to ensure that completed victim impact statements are submitted to the department as provided by Article [56A.159\(b\)](#).

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.153. NOTIFICATION TO COURT REGARDING RELEASE OF DEFENDANT WITH ACCESS TO CHILD VICTIM. If information collected under Article [56A.151\(b\)\(2\)\(H\)](#) indicates the defendant is granted possession of or access to a child victim under court order and the department subsequently imprisons the defendant as a result of the defendant's commission of the offense, the victim services division of the department shall contact the court that issued the order

before the department releases the defendant on parole or to mandatory supervision.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.154. CHANGE OF ADDRESS. If a victim, guardian of a victim, or close relative of a deceased victim states on a victim impact statement that the victim, guardian, or relative wants to be notified of parole proceedings, the victim, guardian, or relative must notify the board of any change of address.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.155. DISCOVERY OF STATEMENT. A victim impact statement is subject to discovery under Article [39.14](#) before the testimony of the victim is taken only if the court determines that the statement contains exculpatory material.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.156. INSPECTION OF STATEMENT BY COURT; DISCLOSURE OF CONTENTS. The court may not inspect a victim impact statement until after a finding of guilt or until deferred adjudication community supervision is ordered and the contents of the statement may not be disclosed to any person unless:

(1) the defendant pleads guilty or nolo contendere or is convicted of the offense; or

(2) the defendant authorizes the court in writing to inspect the statement.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.157. CONSIDERATION OF STATEMENT BY COURT. (a) Before imposing a sentence, a court shall, as applicable, inquire as to whether a victim impact statement has been returned to the attorney representing the state and, if a statement has been returned to the attorney, consider the information provided in the

statement.

(b) On inquiry by the sentencing court, the attorney representing the state shall make a copy of the statement available for consideration by the court.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.158. DEFENDANT RESPONSE TO STATEMENT. Before sentencing a defendant, a court shall permit the defendant or the defendant's attorney a reasonable period to:

(1) read the victim impact statement, excluding the victim's name, address, and telephone number;

(2) comment on the statement; and

(3) with the approval of the court, introduce testimony or other information alleging a factual inaccuracy in the statement.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.159. TRANSFER OF STATEMENT AFTER SENTENCING.

(a) If a court sentences a defendant to a period of community supervision, the attorney representing the state shall forward any victim impact statement received in the case to the community supervision and corrections department supervising the defendant.

(b) If a court sentences a defendant to imprisonment in the department, the court shall attach to the commitment papers the copy of the victim impact statement provided to the court under Article [56A.157](#)(b).

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.160. SURVEY PLAN REGARDING STATEMENTS. (a) In this article, "planning body" means the board, the clearinghouse, and the community justice assistance division of the department.

(b) The planning body shall develop a survey plan to maintain statistics on the numbers and types of persons to whom state and local agencies provide victim impact statements during

each year.

(c) At intervals specified in the survey plan, the planning body may require any state or local agency to submit the following, in a form prescribed for the reporting of the information:

(1) statistical data on the numbers and types of persons to whom the agency provides victim impact statements; and

(2) any other information required by the planning body.

(d) The form described by Subsection (c) must be designed to:

(1) protect the privacy of persons provided rights under Subchapter B; and

(2) determine whether the selected agency is making a good faith effort to protect the rights of the persons served.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

SUBCHAPTER E. VICTIM ASSISTANCE COORDINATOR; CRIME VICTIM LIAISON

Art. 56A.201. DESIGNATION OF VICTIM ASSISTANCE COORDINATOR. The district attorney, criminal district attorney, or county attorney who prosecutes criminal cases shall designate a person to serve as victim assistance coordinator in that jurisdiction.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.202. DUTIES OF VICTIM ASSISTANCE COORDINATOR.

(a) The victim assistance coordinator designated under Article [56A.201](#) shall:

(1) ensure that a victim, guardian of a victim, or close relative of a deceased victim is provided the rights granted to victims, guardians, or relatives by Subchapter B; and

(2) work closely with appropriate law enforcement agencies, attorneys representing the state, the board, and the judiciary in carrying out the duty described by Subdivision (1).

(b) The victim assistance coordinator shall send to a

victim, guardian of a victim, or close relative of a deceased victim a victim impact statement and victims' information booklet described by Article [56A.151](#) and an application for compensation under Chapter [56B](#). The victim assistance coordinator shall include an offer to assist in completing the statement and application on request.

(c) The victim assistance coordinator, on request, shall explain the possible use and consideration of the victim impact statement at any sentencing or parole hearing of the defendant.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.203. DESIGNATION OF CRIME VICTIM LIAISON. Each local law enforcement agency shall designate one person to serve as the agency's crime victim liaison.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.204. DUTIES OF CRIME VICTIM LIAISON. (a) The crime victim liaison designated under Article [56A.203](#) shall ensure that a victim, guardian of a victim, or close relative of a deceased victim is provided the rights granted to victims, guardians, or relatives by Articles [56A.051](#)(a)(4), (6), and (9).

(b) Each local law enforcement agency shall consult with the victim assistance coordinator in the office of the attorney representing the state to determine the most effective manner in which the crime victim liaison can perform the duties imposed on the crime victim liaison under this article and, if applicable, Article [56A.205](#).

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.205. PSYCHOLOGICAL COUNSELING FOR CERTAIN JURORS.

(a) A commissioners court may approve a program in which a crime victim liaison or victim assistance coordinator may offer not more than 10 hours of post-investigation or posttrial psychological counseling for a person who:

(1) serves as a grand juror, alternate grand juror, juror, or alternate juror in a grand jury investigation or criminal trial involving graphic evidence or testimony; and

(2) requests the counseling not later than the 180th day after the date on which the grand jury or jury is dismissed.

(b) The crime victim liaison or victim assistance coordinator may provide the counseling using a provider that assists local criminal justice agencies in providing similar services to victims.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

SUBCHAPTER G. FORENSIC MEDICAL EXAMINATION OF SEXUAL ASSAULT VICTIM

Art. 56A.301. DEFINITIONS. In this subchapter:

(1) "Crime laboratory" has the meaning assigned by Article [38.35](#).

(2) "Department" means the Department of Public Safety of the State of Texas.

(3) Repealed by Acts 2021, 87th Leg., R.S., Ch. 915 (H.B. [3607](#)), Sec. 4.011, eff. September 1, 2021.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Amended by:

Acts 2021, 87th Leg., R.S., Ch. 915 (H.B. [3607](#)), Sec. 4.011, eff. September 1, 2021.

Art. 56A.302. APPLICABILITY. This subchapter applies to the following health care providers that provide diagnosis or treatment services to victims of sexual assault:

(1) a general or special hospital licensed under Chapter [241](#), Health and Safety Code;

(2) a general or special hospital owned by this state;

(3) an outpatient clinic;

(4) a private physician's office; and

(5) a SAFE program as defined by Section [323.051](#),

Health and Safety Code.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Amended by:

Acts 2021, 87th Leg., R.S., Ch. 817 (H.B. [2462](#)), Sec. 6, eff. September 1, 2021.

Acts 2021, 87th Leg., R.S., Ch. 822 (H.B. [2706](#)), Sec. 4, eff. September 1, 2021.

Art. 56A.303. FORENSIC MEDICAL EXAMINATION.

(a) In accordance with Subchapter [B](#), Chapter [420](#), Government Code, and except as provided by Subsection (b), a health care provider shall conduct a forensic medical examination of:

(1) a victim of a sexual assault who is a minor as defined by Section [101.003](#), Family Code, regardless of when the victim arrives at the provider, if the victim, a person authorized to act on behalf of the victim, or an employee of the Department of Family and Protective Services consents to the examination, or if consent is provided as described by Section [32.003](#) or [32.005](#), Family Code; and

(2) a victim of a sexual assault who is not a minor, if:

(A) the victim arrives at the provider:

(i) within 120 hours after the assault occurred; or

(ii) later than 120 hours after the assault occurred, and the victim is:

(a) referred for a forensic medical examination by a law enforcement agency under Subsection (b-1); or

(b) referred for a forensic medical examination by a physician, sexual assault examiner, or sexual assault nurse examiner who has conducted a preliminary medical evaluation and determined that a forensic medical examination should be conducted; and

(B) the victim, a person authorized to act on behalf of the victim, or an employee of the Department of Family and Protective Services consents to the examination.

(b) If a health care provider does not provide diagnosis or treatment services to victims of sexual assault, the provider shall refer a victim of a sexual assault who seeks a forensic medical examination under Subsection (a) to a health care provider that provides services to those victims.

(b-1) A law enforcement agency shall refer a victim of a sexual assault for a forensic medical examination, to be conducted in accordance with Subsection (a), if a sexual assault is reported to a law enforcement agency within 120 hours after the assault or, if the victim is a minor as defined by Section [101.003](#), Family Code, regardless of when the sexual assault is reported. A law enforcement agency may make the same referral with respect to any victim of a sexual assault who is not a minor and who does not report the sexual assault within the 120-hour period required by this subsection if the agency believes that a forensic medical examination may further a sexual assault investigation or prosecution.

(c) A victim of a sexual assault may not be required to participate in the investigation or prosecution of an offense as a condition of receiving a forensic medical examination under this article.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Amended by:

Acts 2021, 87th Leg., R.S., Ch. 817 (H.B. [2462](#)), Sec. 7, eff. September 1, 2021.

Acts 2021, 87th Leg., R.S., Ch. 822 (H.B. [2706](#)), Sec. 5, eff. September 1, 2021.

Acts 2021, 87th Leg., R.S., Ch. 915 (H.B. [3607](#)), Sec. 4.012(a), eff. September 1, 2021.

Acts 2023, 88th Leg., R.S., Ch. 206 (S.B. [1401](#)), Sec. 5, eff. September 1, 2023.

Art. 56A.304. PAYMENT OF FEES RELATED TO EXAMINATION.

(a) On application to the attorney general and subject to Article [56A.305](#)(e), a health care provider that provides a forensic medical examination to a sexual assault survivor in accordance with this

subchapter, or the sexual assault examiner or sexual assault nurse examiner who conducts that examination in accordance with this subchapter, as applicable, is entitled to be reimbursed in an amount set by attorney general rule for:

- (1) the reasonable costs of the forensic portion of that examination;

- (2) the evidence collection kit; and

- (3) the reasonable costs of other medical care provided to the victim during the forensic medical examination in accordance with Subchapters A and B, Chapter 323, Health and Safety Code, and of any prescribed continuing medical care that is related to the sexual assault and provided to the victim during the 30-day period following that examination, including medication and medical testing.

(b) The application under Subsection (a) must be in the form and manner prescribed by the attorney general and must include:

- (1) certification that the examination was conducted in accordance with the requirements of Article 56A.303(a); and

- (2) a complete and itemized bill of the reasonable costs of the forensic portion of the examination and any additional medical care described by Subsection (a)(3).

(c) A health care provider or a sexual assault examiner or sexual assault nurse examiner, as applicable, who applies for reimbursement under Subsection (a) shall accept reimbursement from the attorney general as payment for the costs unless:

- (1) the health care provider or sexual assault examiner or sexual assault nurse examiner, as applicable:

- (A) requests, in writing, additional reimbursement from the attorney general; and

- (B) provides documentation in support of the additional reimbursement, as reasonably requested by the attorney general; and

- (2) the attorney general determines that there is a reasonable justification for additional reimbursement.

Text of subsection as added by Acts 2021, 87th Leg., R.S., Ch. 817

(H.B. 2462), Sec. 8

(d) A health care provider is not entitled to reimbursement under this article unless the forensic medical examination was conducted at the provider by a physician, sexual assault examiner, or sexual assault nurse examiner.

Text of subsection as added by Acts 2021, 87th Leg., R.S., Ch. 822
(H.B. [2706](#)), Sec. 6

(d) A health care provider is not entitled to reimbursement under this article unless the forensic medical examination was conducted on the premises of the provider by a sexual assault examiner or sexual assault nurse examiner.

(e) On request, the attorney general may provide training to a health care provider regarding the process for applying for reimbursement under this article.

(f) A victim of a sexual assault may not be required to pay for:

(1) the forensic portion of the forensic medical examination; or

(2) the evidence collection kit.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Amended by:

Acts 2021, 87th Leg., R.S., Ch. 817 (H.B. [2462](#)), Sec. 8, eff. September 1, 2021.

Acts 2021, 87th Leg., R.S., Ch. 822 (H.B. [2706](#)), Sec. 6, eff. September 1, 2021.

Acts 2021, 87th Leg., R.S., Ch. 915 (H.B. [3607](#)), Sec. 4.012(b), eff. September 1, 2021.

Acts 2023, 88th Leg., R.S., Ch. 206 (S.B. [1401](#)), Sec. 6, eff. September 1, 2023.

Acts 2025, 89th Leg., R.S., Ch. 365 (H.B. [47](#)), Sec. 4, eff. September 1, 2025.

Art. 56A.3045. PAYMENT OF COSTS RELATED TO TESTIMONY. A law enforcement agency or an office of the attorney representing

the state may pay any costs related to the testimony of a licensed health care professional in a criminal proceeding regarding the results of a forensic medical examination described by Article [56A.303](#) or the manner in which the examination was performed.

Added by Acts 2023, 88th Leg., R.S., Ch. 206 (S.B. [1401](#)), Sec. 7, eff. September 1, 2023.

Art. 56A.305. PAYMENT OF COSTS FOR CERTAIN MEDICAL CARE.

(a) The attorney general shall make a payment to a victim of a sexual assault or on behalf of a victim of a sexual assault for the reasonable costs incurred for medical care that is provided to the victim as described by Article [56A.304](#)(a).

(b) The attorney general shall make a payment under Subsection (a) in accordance with the medical fee guidelines prescribed by Subtitle A, Title 5, Labor Code. A payment made under Subsection (a) may not exceed \$25,000.

(c) Neither the attorney general nor a victim of a sexual assault is liable for costs incurred for medical care that:

(1) exceed the medical fee guidelines described by Subsection (b); or

(2) is not medically necessary.

(d) The Health and Human Services Commission may contract with a third-party vendor or other entity to provide health care providers access to prescription drugs for purposes of medical care described by Subsection (a).

(e) The attorney general may deny or reduce a payment under Subsection (a) to the extent that the amount otherwise proposed for reimbursement is recouped from a collateral source.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Amended by:

Acts 2021, 87th Leg., R.S., Ch. 822 (H.B. [2706](#)), Sec. 7, eff. September 1, 2021.

Acts 2023, 88th Leg., R.S., Ch. 206 (S.B. [1401](#)), Sec. 8, eff. September 1, 2023.

Art. 56A.306. PROCEDURES FOR TRANSFER AND PRESERVATION OF

EVIDENCE. (a) The department, consistent with Chapter 420, Government Code, shall develop procedures for the transfer, preservation, and testing of evidence collected during a forensic medical examination for a sexual assault that was not reported to a law enforcement agency, including procedures for:

(1) the transfer of the evidence to a crime laboratory or other suitable location designated by the public safety director of the department;

(2) the preservation of the evidence by the entity receiving the evidence;

(3) the notification of the survivor of the offense through the statewide electronic tracking system before a planned destruction of evidence under this article; and

(4) forensic DNA testing performed in accordance with the limited consent of a survivor or other authorized person, as described by Section 420.0736, Government Code.

(a-1) The transfer and preservation of evidence collected during a forensic medical examination for a reported sexual assault must comply with the procedures under Sections 420.035(b) and (c) and 420.042(a), Government Code.

(b) Subject to Subsection (c), an entity receiving evidence collected during a forensic medical examination as described by this subchapter shall preserve the evidence until the earlier of:

(1) the fifth anniversary of the date on which the evidence was collected; or

(2) the date on which written consent to release the evidence is obtained as provided by Section 420.0735, Government Code.

(c) An entity receiving evidence collected during a forensic medical examination as described by this subchapter may destroy the evidence on the expiration of the entity's duty to preserve the evidence under Subsection (b)(1) only if notice of the planned destruction is entered into the statewide electronic tracking system and an objection is not received by the entity from the victim before the 91st day after the date on which the entity entered the notice of the planned destruction of the evidence into the tracking system.

(d) Repealed by Acts 2023, 88th Leg., R.S., Ch. 206 (S.B. [1401](#)), Sec. 25(2), eff. September 1, 2023.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Amended by:

Acts 2021, 87th Leg., R.S., Ch. 915 (H.B. [3607](#)), Sec. 4.013(a), eff. September 1, 2021.

Acts 2023, 88th Leg., R.S., Ch. 206 (S.B. [1401](#)), Sec. 9, eff. September 1, 2023.

Acts 2023, 88th Leg., R.S., Ch. 206 (S.B. [1401](#)), Sec. 25(2), eff. September 1, 2023.

Acts 2025, 89th Leg., R.S., Ch. 557 (H.B. [1422](#)), Sec. 3, eff. September 1, 2025.

Art. 56A.307. PROCEDURES FOR SUBMISSION OR COLLECTION OF ADDITIONAL EVIDENCE. The department, consistent with Chapter [420](#), Government Code, may develop procedures regarding the submission or collection of additional evidence of a sexual assault other than through a forensic medical examination as described by Article [56A.303](#).

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Amended by:

Acts 2021, 87th Leg., R.S., Ch. 817 (H.B. [2462](#)), Sec. 9, eff. September 1, 2021.

Acts 2023, 88th Leg., R.S., Ch. 206 (S.B. [1401](#)), Sec. 10, eff. September 1, 2023.

Art. 56A.308. CONFIDENTIALITY OF CERTAIN RECORDS. (a) In this article, "identifying information" includes information that:

(1) reveals the identity, personal history, or background of a person; or

(2) concerns the victimization of a person.

(b) A communication or record is confidential for purposes of Section [552.101](#), Government Code, if the communication or record:

(1) contains identifying information regarding a

victim who receives a forensic medical examination under Article 56A.303; and

(2) is created by, provided to, or in the control or possession of the department.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. 4173), Sec. 1.05, eff. January 1, 2021.

Amended by:

Acts 2023, 88th Leg., R.S., Ch. 206 (S.B. 1401), Sec. 11, eff. September 1, 2023.

Art. 56A.309. RULES. The attorney general and the department shall each adopt rules as necessary to implement this subchapter.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. 4173), Sec. 1.05, eff. January 1, 2021.

SUBCHAPTER H. PRESENCE OF ADVOCATE OR REPRESENTATIVE DURING FORENSIC MEDICAL EXAMINATION OR LAW ENFORCEMENT INTERVIEW

Art. 56A.351. PRESENCE OF SEXUAL ASSAULT PROGRAM ADVOCATE.

(a) Before conducting a forensic medical examination of a victim who consents to the examination for the collection of evidence for an alleged sexual assault, the physician or other medical services personnel conducting the examination shall offer the victim the opportunity to have an advocate from a sexual assault program as defined by Section 420.003, Government Code, be present with the victim during the examination, if the advocate is available at the time of the examination. The advocate must have completed a sexual assault training program described by Section 420.011(b), Government Code.

(b) An advocate may only provide the victim with:

(1) counseling and other support services; and
(2) information regarding the rights of crime victims under Subchapter B.

(c) Notwithstanding Subsection (a), an advocate and a sexual assault program providing the advocate may not delay or

otherwise impede the screening or stabilization of an emergency medical condition.

(d) A sexual assault program providing an advocate shall pay all costs associated with providing the advocate.

(e) Any individual or entity, including a health care facility, that provides an advocate with access under Subsection (a) to a victim consenting to a forensic medical examination is not subject to civil or criminal liability for providing that access.

(f) An individual or entity, including a health care facility, that is required to offer a victim the opportunity to have an advocate from a sexual assault program be present with the victim during the forensic medical examination shall document:

(1) whether the offer was extended to the victim;

(2) whether the advocate was available at the time of the examination; and

(3) if the offer was not extended to the victim, the reason the offer was not extended to the victim.

(g) In this article, "health care facility" includes a hospital licensed under Chapter 241, Health and Safety Code.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. 4173), Sec. 1.05, eff. January 1, 2021.

Amended by:

Acts 2025, 89th Leg., R.S., Ch. 179 (S.B. 761), Sec. 4, eff. September 1, 2025.

Art. 56A.3515. PRESENCE OF SEXUAL ASSAULT PROGRAM ADVOCATE OR OTHER VICTIM'S REPRESENTATIVE DURING LAW ENFORCEMENT INTERVIEW.

(a) Before conducting an investigative interview with a victim reporting a sexual assault, other than a victim who is a minor as defined by Section 101.003, Family Code, the peace officer or other individual conducting the interview shall offer the victim the opportunity to have an advocate from a sexual assault program, as defined by Section 420.003, Government Code, be present with the victim during the interview, if the advocate is available at the time of the interview. The advocate must have completed a sexual assault training program described by Section 420.011(b), Government Code.

(b) If an advocate described by Subsection (a) is not available at the time of the interview, the peace officer or other individual conducting the interview shall offer the victim the opportunity to have a crime victim liaison from the law enforcement agency, a peace officer who has completed a sexual assault training program described by Section 420.011(b), Government Code, or a victim's assistance counselor from a state or local agency or other entity be present with the victim during the interview.

(b-1) The peace officer or other individual conducting an investigative interview described by Subsection (a) shall make a good faith effort to comply with Subsections (a) and (b), except that the officer's or individual's compliance with those subsections may not unreasonably delay or otherwise impede the interview process.

(b-2) A victim described by Subsection (a) has the right to have an attorney present during an investigative interview with the victim. The attorney may not unreasonably delay or otherwise impede the interview process.

(c) An advocate, liaison, officer, or counselor authorized to be present during an interview under this article may only provide the victim reporting the sexual assault with:

- (1) counseling and other support services; and
- (2) information regarding the rights of crime victims under Subchapter B.

(d) The advocate, liaison, officer, or counselor and the sexual assault program or other entity providing the advocate, liaison, officer, or counselor may not unreasonably delay or otherwise impede the interview process.

(e) A sexual assault program providing an advocate under Subsection (a) shall pay all costs associated with providing the advocate. An entity providing a victim's assistance counselor under Subsection (b) shall pay all costs associated with providing the counselor.

(f) An individual or entity that provides an advocate, liaison, officer, or counselor with access to a victim reporting a sexual assault is not subject to civil or criminal liability for providing that access.

Added by Acts 2021, 87th Leg., R.S., Ch. 649 (H.B. [1172](#)), Sec. 5, eff. September 1, 2021.

Amended by:

Acts 2025, 89th Leg., R.S., Ch. 179 (S.B. [761](#)), Sec. 5, eff. September 1, 2025.

Art. 56A.352. REPRESENTATIVE PROVIDED BY PENAL INSTITUTION. (a) In this article, "penal institution" has the meaning assigned by Section [1.07](#), Penal Code.

(b) If a victim alleging to have sustained injuries as the victim of a sexual assault was confined in a penal institution at the time of the alleged assault, the penal institution shall provide, at the victim's request, a representative to be present with the victim:

(1) at any forensic medical examination conducted for the purpose of collecting and preserving evidence related to the investigation or prosecution of the alleged assault; and

(2) during an investigative interview conducted by a peace officer in relation to the investigation of the alleged assault.

(b-1) The representative provided by the penal institution under Subsection (b) must:

(1) be approved by the penal institution; and

(2) be a:

(A) psychologist;

(B) sociologist;

(C) chaplain;

(D) social worker;

(E) case manager; or

(F) volunteer who has completed a sexual assault training program described by Section [420.011\(b\)](#), Government Code.

(c) A representative may only provide the victim with:

(1) counseling and other support services; and

(2) information regarding the rights of crime victims under Subchapter B.

(d) A representative may not delay or otherwise impede:

(1) the screening or stabilization of an emergency

medical condition; or

(2) the interview process.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Amended by:

Acts 2021, 87th Leg., R.S., Ch. 649 (H.B. [1172](#)), Sec. 6, eff. September 1, 2021.

SUBCHAPTER I. PEACE OFFICER AND LAW ENFORCEMENT AGENCY DUTIES;
VICTIM NOTIFICATIONS

Art. 56A.401. NOTIFICATION OF RIGHTS. At the initial contact or at the earliest possible time after the initial contact between a victim of a reported offense and the law enforcement agency having the responsibility for investigating the offense, the agency shall provide the victim a written notice containing:

(1) information about the availability of emergency and medical services, if applicable;

(2) information about the rights of crime victims under Subchapter B;

(3) notice that the victim has the right to receive information:

(A) regarding compensation to victims of crime as provided by Chapter [56B](#), including information relating to the costs that may be compensated under that chapter and the amount of compensation, eligibility for compensation, and procedures for application for compensation under that chapter;

(B) for a victim of a sexual assault, regarding the payment under Subchapter G for a forensic medical examination and for any prescribed continuing medical care that is related to the sexual assault and provided to the victim during the 30-day period following that examination, as provided by Subchapter G; and

(C) providing a referral to available social service agencies that may offer additional assistance;

(4) the name, address, and phone number of the law enforcement agency's crime victim liaison;

(5) the name, address, and phone number of the victim

assistance coordinator of the office of the attorney representing the state; and

(6) the following statement:

"You may call the law enforcement agency's telephone number for the status of the case and information about victims' rights."

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Amended by:

Acts 2023, 88th Leg., R.S., Ch. 206 (S.B. [1401](#)), Sec. 12, eff. September 1, 2023.

Acts 2025, 89th Leg., R.S., Ch. 365 (H.B. [47](#)), Sec. 5, eff. September 1, 2025.

Art. 56A.403. DUTIES OF PEACE OFFICERS REGARDING VICTIMS OF SEXUAL ASSAULT. (a) A peace officer who investigates an incident involving sexual assault or who responds to a disturbance call that may involve sexual assault shall provide to the victim a written notice containing information about the rights of crime victims under Article [56A.052](#) and the rights and procedures under Chapter [58](#).

(b) At the initial contact or at the earliest possible time after the initial contact between a sexual assault victim and the peace officer responding to the incident or disturbance call about the offense, the peace officer shall:

(1) provide to the victim:

(A) a written referral to the nearest sexual assault program as defined by Section [351.251](#), Local Government Code; and

(B) information about the statewide electronic tracking system established under Section [420.034](#), Government Code;

(2) offer to request a forensic medical examination on behalf of the victim in accordance with Article 56A.251;

(3) coordinate with the local response team, as defined by Section [351.251](#), Local Government Code, to provide continuing care to the victim or to further investigate the offense; and

(4) provide to the victim a written notice containing all of the information required by this article.

(c) Each law enforcement agency shall consult with a local sexual assault program or response team, as those terms are defined by Section 351.251, Local Government Code, to develop the written notice required by Subsection (b). The notice must include the information described by Subsection (d) and may be combined with the written notice required under Article 56A.401. At least once each biennium, the law enforcement agency shall update the notice required by Subsection (b).

(d) The notice required by Subsection (b) must be in English and Spanish and include the current contact information for a victim assistance coordinator under Article 56A.201 and a crime victim liaison under Article 56A.203. The notice is considered sufficient if it includes the following statements:

"NOTICE TO ADULT VICTIMS OF SEXUAL ASSAULT"

"It is a crime for any person to cause you any physical injury or harm."

"Please tell the investigating peace officer if you have been injured or if you feel you are going to be in danger when the officer leaves or at a later time."

"You have the right to:

"(1) obtain a forensic medical examination within 120 hours of the assault to collect potential evidence and receive preventative medications, even if you decide not to make a report to a law enforcement agency;

"(2) anonymously track or receive updates regarding the status and location of each item of evidence collected in your case;

"(3) have a sexual assault program advocate present during a forensic medical examination;

"(4) have a sexual assault program advocate or other victim's representative present during an investigative interview with law enforcement;

"(5) ask the local prosecutor to file a criminal complaint against the person who assaulted you; and

"(6) if a defendant is arrested for a crime against you involving certain sexual crimes, stalking, or trafficking:

"(A) request an order for emergency protection to be issued by a magistrate;

"(B) using procedures provided by Chapter 58, Code of Criminal Procedure, request a pseudonym to be used instead of your name in all public files and records concerning the offense; and

"(C) apply to a court for a permanent order to protect you (you should consult a legal aid office, a prosecuting attorney, or a private attorney)."

"For example, the court can enter an order that prohibits the person who assaulted you from:

"(1) committing further acts of violence;

"(2) threatening, harassing, or contacting you or a member of your family or household; and

"(3) going near your place of employment or near a child care facility or school attended by you or a member of your family or household."

"You cannot be charged a fee by a court in connection with filing, serving, or entering a protective order."

"If you have questions about the status of your case or need assistance, you may contact the crime victim liaison (insert name) at our agency (law enforcement agency address and victim liaison phone number)."

"If you would like to speak with someone in the prosecuting attorney's office, you may reach their victim assistance coordinator at (address and phone number)."

"Call the following sexual assault program or social service organization if you need assistance or wish to speak with an advocate:

" _____
" _____."

"You may receive a sexual assault forensic medical examination at the following location(s):

" _____
" _____."

"To get help from the National Human Trafficking Hotline: 1-888-373-7888 or text HELP or INFO to BeFree (233733)."

(e) A sexual assault program may provide a written

description of the program's services to a law enforcement agency, for use in delivering the written referral required by Subsection (b).

Added by Acts 2023, 88th Leg., R.S., Ch. 80 (S.B. 806), Sec. 2, eff. September 1, 2023.

Amended by:

Acts 2025, 89th Leg., R.S., Ch. 11 (S.B. 836), Sec. 5, eff. September 1, 2025.

SUBCHAPTER J. REQUIRED NOTIFICATIONS BY ATTORNEY REPRESENTING THE STATE

Art. 56A.451. NOTIFICATION OF RIGHTS. (a) Not later than the 10th day after the date that an indictment or information is returned against a defendant for an offense, the attorney representing the state shall give to each victim of the offense a written notice containing:

- (1) the case number and assigned court for the case;
- (2) a brief general statement of each procedural stage in the processing of a criminal case, including bail, plea bargaining, parole restitution, and appeal;
- (3) a statement that the attorney representing the state does not represent the victim, guardian of a victim, or close relative of a deceased victim;
- (4) suggested steps the victim may take if the victim is subjected to threats or intimidation;
- (5) the name, address, and phone number of the local victim assistance coordinator; and
- (6) notification of:
 - (A) the rights and procedures under this chapter, Chapter 56B, and Subchapter B, Chapter 58;
 - (B) the right to file a victim impact statement with the office of the attorney representing the state and the department;
 - (C) the right to receive information:
 - (i) regarding compensation to victims of crime as provided by Chapter 56B, including information relating to

the costs that may be compensated under that chapter, eligibility for compensation, and procedures for application for compensation under that chapter;

(ii) for a victim of a sexual assault, regarding the payment under Subchapter G for a forensic medical examination and for any prescribed continuing medical care that is related to the sexual assault and provided to the victim during the 30-day period following that examination, as provided by Subchapter G; and

(iii) providing a referral to available social service agencies that may offer additional assistance;

(D) the right of a victim, guardian of a victim, or close relative of a deceased victim, as defined by Section [508.117](#), Government Code, to appear in person before a member of the board as provided by Section [508.153](#), Government Code; and

(E) the right of a victim, guardian of a victim, or close relative of a deceased victim to assert the rights granted by this chapter either orally or in writing, and either individually or through an attorney, as provided by Article [56A.0531](#).

(b) The brief general statement required by Subsection (a)(2) that describes the plea bargaining stage in a criminal trial must include a statement that:

(1) a victim impact statement provided by a victim, guardian of a victim, or close relative of a deceased victim will be considered by the attorney representing the state in entering into a plea bargain agreement; and

(2) the judge before accepting a plea bargain agreement is required under Article [26.13](#)(e) to ask:

(A) whether a victim impact statement has been returned to the attorney representing the state;

(B) if a victim impact statement has been returned, for a copy of the statement; and

(C) whether the attorney representing the state has given the victim, guardian of a victim, or close relative of a deceased victim notice of the existence and terms of the plea bargain agreement.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Amended by:

Acts 2023, 88th Leg., R.S., Ch. 206 (S.B. [1401](#)), Sec. 13, eff. September 1, 2023.

Acts 2025, 89th Leg., R.S., Ch. 179 (S.B. [761](#)), Sec. 6, eff. September 1, 2025.

Acts 2025, 89th Leg., R.S., Ch. 365 (H.B. [47](#)), Sec. 6, eff. September 1, 2025.

Art. 56A.452. NOTIFICATION OF SCHEDULED COURT PROCEEDINGS.

(a) If requested by the victim, the attorney representing the state, at least five business days before the date of the court proceeding or the filing of the continuance request or otherwise as soon as reasonably practicable, shall give the victim notice of:

- (1) any scheduled court proceedings; and
- (2) the filing of a request for continuance of a trial setting.

(b) If requested by the victim, the attorney representing the state shall give the victim notice of any changes in scheduled court proceedings as soon as possible.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Amended by:

Acts 2025, 89th Leg., R.S., Ch. 179 (S.B. [761](#)), Sec. 7, eff. September 1, 2025.

Art. 56A.453. NOTIFICATION OF PLEA BARGAIN AGREEMENT. The attorney representing the state, as far as reasonably practical, shall give a victim, guardian of a victim, or close relative of a deceased victim notice of the existence and terms of any plea bargain agreement to be presented to the court.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.454. VICTIM CONTACT INFORMATION. (a) A victim who receives a notice under Article [56A.451](#)(a) and who chooses to

receive other notice under law about the same case must keep the following persons informed of the victim's current address and phone number:

- (1) the attorney representing the state; and
- (2) the department if the defendant is imprisoned in the department after sentencing.

(b) An attorney representing the state who receives information concerning a victim's current address and phone number shall immediately provide that information to the community supervision and corrections department supervising the defendant, if the defendant is placed on community supervision.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

SUBCHAPTER K. NOTIFICATION BY CERTAIN ENTITIES OF RELEASE OR ESCAPE

Art. 56A.501. DEFINITION. In this subchapter, "correctional facility" has the meaning assigned by Section [1.07](#), Penal Code.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Amended by:

Acts 2025, 89th Leg., R.S., Ch. 797 (S.B. [1120](#)), Sec. 6, eff. September 1, 2025.

Art. 56A.502. APPLICABILITY. This subchapter applies to a defendant convicted of:

(1) an offense under Title 5, Penal Code, that is punishable as a felony;

(2) an offense described by Section [508.187](#)(a), Government Code, other than an offense described by Subdivision (1); or

(3) an offense involving family violence, stalking, or violation of a protective order or magistrate's order.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.503. NOTIFICATION OF RELEASE OR ESCAPE. (a) The department or sheriff, whichever has custody of a defendant in the case of a felony, or the sheriff in the case of a misdemeanor, shall notify a victim of the offense or a witness who testified against the defendant at the trial for the offense, other than a witness who testified in the course and scope of the witness's official or professional duties, when a defendant convicted of an offense described by Article 56A.502:

(1) completes the defendant's sentence and is released; or

(2) escapes from a correctional facility.

(b) If the department is required by Subsection (a) to give notice to a victim or witness, the department shall also give notice to local law enforcement officials in the county in which the victim or witness resides.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. 4173), Sec. 1.05, eff. January 1, 2021.

Art. 56A.504. NOTIFICATION REGARDING DEFENDANT SUBJECT TO ELECTRONIC MONITORING. The department, in the case of a defendant released on parole or to mandatory supervision following a term of imprisonment for an offense described by Article 56A.502, or a community supervision and corrections department supervising a defendant convicted of an offense described by Article 56A.502 and subsequently released on community supervision, shall notify a victim or witness described by Article 56A.503(a) when the defendant, if subject to electronic monitoring as a condition of release, ceases to be electronically monitored.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. 4173), Sec. 1.05, eff. January 1, 2021.

Art. 56A.505. NOTIFICATION OF RIGHT TO NOTICE. Not later than immediately following the conviction of a defendant for an offense described by Article 56A.502, the attorney who represented the state in the prosecution of the case shall notify in writing a victim or witness described by Article 56A.503(a) of the victim's

or witness's right to receive notice under this subchapter.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.506. VICTIM OR WITNESS CONTACT INFORMATION; CONFIDENTIALITY. (a) A victim or witness who wants notification under this subchapter must:

(1) provide the department, the sheriff, or the community supervision and corrections department supervising the defendant, as appropriate, with the e-mail address, mailing address, and telephone number of the victim, witness, or other person through whom the victim or witness may be contacted; and

(2) notify the appropriate department or the sheriff of any change of address or telephone number of the victim, witness, or other person.

(b) Information obtained and maintained by the department, a sheriff, or a community supervision and corrections department under this article is privileged and confidential.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.507. TIME FOR NOTICE. (a) The department, the sheriff, or the community supervision and corrections department supervising the defendant, as appropriate:

(1) shall make a reasonable attempt to give any notice required by Article [56A.503](#)(a) or [56A.504](#):

(A) not later than the 30th day before the date the defendant:

(i) completes the sentence and is released;
or

(ii) ceases to be electronically monitored as a condition of release; or

(B) immediately if the defendant escapes from the correctional facility; and

(2) may give the notice by e-mail, if possible.

(b) An attempt by the department, the sheriff, or the community supervision and corrections department supervising the

defendant to give notice to a victim or witness at the victim's or witness's last known mailing address or, if notice by e-mail is possible, last known e-mail address, as shown on the records of the appropriate department or agency, constitutes a reasonable attempt to give notice under this subchapter.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

SUBCHAPTER L. NOTIFICATION BY DEPARTMENT OF ESCAPE OR TRANSFER

Art. 56A.551. DEFINITION. In this subchapter, "witness's close relative" means a person who:

(1) was the spouse of a deceased witness at the time of the witness's death; or

(2) is a parent or adult brother, sister, or child of a deceased witness.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.552. NOTIFICATION OF VICTIM. The department shall immediately notify the victim of an offense, the victim's guardian, or the victim's close relative if the victim is deceased, if the victim, victim's guardian, or victim's close relative has notified the department as provided by Article [56A.554](#), when the defendant:

(1) escapes from a facility operated by the department for the imprisonment of individuals convicted of felonies other than state jail felonies; or

(2) is transferred from the custody of a facility described by Subdivision (1) to the custody of a peace officer under a writ of attachment or a bench warrant.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.553. NOTIFICATION OF WITNESS. The department shall immediately notify a witness who testified against a defendant at the trial for the offense for which the defendant is

imprisoned, the witness's guardian, or the witness's close relative, if the witness, witness's guardian, or witness's close relative has notified the department as provided by Article [56A.554](#), when the defendant:

(1) escapes from a facility operated by the department for the imprisonment of individuals convicted of felonies other than state jail felonies; or

(2) is transferred from the custody of a facility described by Subdivision (1) to the custody of a peace officer under a writ of attachment or a bench warrant.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.554. REQUEST FOR NOTIFICATION; CHANGE OF ADDRESS. A victim, witness, guardian, or close relative who wants notification of a defendant's escape or transfer from custody under a writ of attachment or bench warrant must notify the department of that fact and of any change of address.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.555. NOTICE OF TRANSFER FROM OR RETURN TO CUSTODY. The department shall include in a notice provided under Article [56A.552](#)(2) or [56A.553](#)(2) the name, address, and telephone number of the peace officer receiving the defendant into custody. On returning the defendant to the custody of the department, the victim services division of the department shall notify the victim, witness, guardian, or close relative, as applicable, of the return.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

SUBCHAPTER M. OTHER POWERS AND DUTIES OF DEPARTMENT AND CLEARINGHOUSE

Art. 56A.601. DATABASE FOR DEFENDANT RELEASE INFORMATION. The department shall:

(1) create and maintain a computerized database containing the release information and release date of a defendant convicted of an offense described by Article [56A.502](#); and

(2) allow a victim or witness entitled to notice under Subchapter K or L to access through the Internet the computerized database maintained under Subdivision (1).

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.602. VICTIM-OFFENDER MEDIATION. The victim services division of the department shall:

(1) train volunteers to act as mediators between victims, guardians of victims, and close relatives of deceased victims and offenders whose criminal conduct caused bodily injury or death to victims; and

(2) provide mediation services through referral of a trained volunteer, if requested by a victim, guardian of a victim, or close relative of a deceased victim.

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.603. CLEARINGHOUSE ANNUAL CONFERENCE. The clearinghouse may:

(1) conduct an annual conference to provide to participants in the criminal justice system training containing information on crime victims' rights; and

(2) charge a fee to a person attending the conference described by Subdivision (1).

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05, eff. January 1, 2021.

Art. 56A.604. CRIME VICTIM ASSISTANCE STANDARDS. The clearinghouse shall develop crime victim assistance standards and distribute those standards to law enforcement officers and attorneys representing the state to aid those officers and attorneys in performing duties imposed by this chapter, Chapter [56B](#), and Subchapter [B](#), Chapter [58](#).

Added by Acts 2019, 86th Leg., R.S., Ch. 469 (H.B. [4173](#)), Sec. 1.05,
eff. January 1, 2021.